

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #15	CCRB Case #: 202304080	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 05/08/2023 8:10 PM	Location of Incident: Outside of Broadway-Lafayette Street subway station		18 Mo. SOL 11/8/2024		Precinct: 09
Date/Time CV Reported Tue, 05/09/2023 3:23 PM	CV Reported At: CCRB	How CV Reported: Social Media	Date/Time Received at CCRB Tue, 05/09/2023 3:23 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. CHIEF John Chell	00000	905942	P S B

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Michael Ranieri	24361	946144	MS CAS
2. PO Eric Yudt	10395	970333	MS CAS
3. PO Nenad Savic	14725	957136	MS CAS

Officer(s)	Allegation	Investigator Recommendation
A . CHIEF John Chell	Abuse: Chief John Chell arrested § 87(2)(b) unlawfully.	[REDACTED]

Case Summary

On May 9 2023, this complaint was filed anonymously with the CCRB on behalf of § 87(2)(b) over social media.

On May 8, 2023, at approximately 8:10 PM, inside of the Broadway-Lafayette Street subway station in Manhattan, § 87(2)(b) a journalist, photographed a vigil for the death of Jordan Neely. § 87(2)(b) was informed by other members of the press present that the police were arresting individuals on the street. § 87(2)(b) exited the subway station. § 87(2)(b) walked to the north side of Houston Street and stood on the crosswalk and observed officers arresting an individual. At this time, Chief of Patrol John Chell grabbed one of § 87(2)(b)'s arms and pulled her backwards towards the sidewalk. Chief Chell escorted § 87(2)(b) to Police Officer Savic and Police Officer Ranieri and Police Officer Yudt of the Community Affairs Bureau, and instructed them to place § 87(2)(b) under arrest (**Allegation A: Abuse of Authority**, § 87(2)(g)). PO Savic and PO Ranieri applied handcuffs on her. The officers escorted § 87(2)(b) to the inside of a patrol vehicle and transported her to the 9th Precinct stationhouse. § 87(2)(b) was issued a summons for § 87(2)(a) 160.50

The investigation received BWC for this incident. It is attached to IA #89 (BR4).

Findings and Recommendations

Allegation (A) Abuse of Authority: Chief John Chell arrested § 87(2)(b) unlawfully.

§ 87(2)(b) stated (BR1) that she and other press photographers exited the subway exit located on the south side of Houston Street, between Lafayette Street and Broadway. Some protesters stood on the sidewalk, while other protesters ran up and down the street and screamed. § 87(2)(b) observed press photographers taking pictures next to police officers in the middle of the eastbound lane on Houston Street. § 87(2)(b) walked closer to the commotion and observed approximately fifteen officers in a circle formation around a handcuffed individual with a bloody face sitting on the ground. § 87(2)(b) and other press photographers on scene took pictures of the individual from approximately twenty feet away. § 87(2)(b) stated that officers repeatedly yelled out, “Get back! Get back!” at her and the other photographers while she attempted to take pictures between the officers’ legs. § 87(2)(b) estimated that she spent approximately twenty seconds taking pictures of the individual with the blooded face.

§ 87(2)(b) walked to another arrest taking place and she briefly observed what was going on. § 87(2)(b) did not find the second arrest to be “interesting” and then walked to a third arrest that was happening on the north side of Houston Street. § 87(2)(b) stood on the crosswalk and observed a group of protesters running southbound on the sidewalk towards Houston Street. There were other press photographers following the group of protesters on the street. § 87(2)(b) estimated that she was approximately thirty feet away from this group. At this time, Chief Chell grabbed one of § 87(2)(b)'s arms and pulled her backwards towards the sidewalk. § 87(2)(b) did not hear any officers issue her any instructions prior to being grabbed by Chief Chell. Chief Chell escorted § 87(2)(b) to PO Savic and PO Ranieri and PO Yudt. PO Savic and PO Ranieri held both of § 87(2)(b)'s arms and placed them behind her back. § 87(2)(b) told PO Ranieri and PO Yudt that she was a press photographer documenting the event. The officers replied, “You are arrested.” The officers escorted § 87(2)(b) to a patrol van. § 87(2)(b) was transported to the 7th Precinct station house and taken to the lobby. § 87(2)(b) were then taken back to the patrol van and transported to the 9th Precinct, where she was processed and issued a summons § 87(2)(a) 160.50

Chief Chell stated **(BR2)** that he observed a group of approximately seventy-five to one hundred protesters, standing at the corner on the sidewalk and in front of the Broadway-Lafayette Street subway entrance and exit and played chants from a speaker located on the stairwell, to voice their grievances. The protesters blocked pedestrian traffic in and out of the subway station. At this time, there were approximately six press photographers taking pictures of the incident. Community Affairs officers gave multiple instructions for protesters to disperse from the subway station entry points and to shut down the speaker. There was active traffic on all four lanes of the road and officers used a Long-Range Acoustic Device (LRAD) to broadcast official instructions for protesters to remain on the sidewalk. A majority of the protesters complied with police instructions to disperse and remain on the sidewalk, while a small minority refused. Chief Chell gave the order for officers to move into the crowd and to remove the speaker on the stairwell. At this time, officers began arresting an individual with a microphone who refused to disperse. Following, the officer then arrested another individual for interfering with the aforementioned arrest. Officers began arresting individuals who refused to disperse. At this time, Chief Chell observed § 87(2)(b) and other press photographers taking pictures of officers arresting an individual on the ground. Chief Chell did not notice § 87(2)(b) prior to this moment and did not know her prior to the incident. Chief Chell felt that § 87(2)(b) wanted to get “very tight shots” of the arrest because she laid perpendicular on the ground, and approximately one and a half foot from Chief Chell’s knee. Chief Chell instructed § 87(2)(b) and other members of the press to disperse from the area and he used his discretion not to take further action. Chief Chell stated that the instruction to disperse also applied to protesters and members of the press, alike.

Throughout the incident, Chief Chell observed § 87(2)(b) continuously get “real close” to officers effecting an arrest. Chief Chell stated that § 87(2)(b)’s action interfered with the officers’ safety, but he used his discretion not to take further action. Chief Chell stated that when § 87(2)(b) got too close to officers effecting an arrest for the third time, he made the decision to place her under arrest for her refusal to stand on the sidewalk. Chief Chell did not observe any other offenses by § 87(2)(b) throughout the incident. Chief Chell gave the order to “Lock her § 87(2)(b) up!” to two Community Affairs officers. PO Savic and PO Ranieri grabbed § 87(2)(b) by the arms. § 87(2)(b) dropped her camera, and Chief Chell picked it up for her. Chief Chell told the Community Affairs officers to get § 87(2)(b) to the stationhouse quickly and to not issue her an OGA Desk Appearance Ticket but to issue her a summons instead. In addition, Chief Chell made the decision not to terminate § 87(2)(b)’s press pass.

Chief Chell stated that members of the press are identified by the white lanyard with black lettering that read “Press” around their necks. Chief Chell stated that press credential badges are issued by the Deputy Commissioner of Public Information (DCPI) from the Mayor’s Office. The NYPD Public Information Officer was not present initially at the incident location and Chief Chell did not know when they arrived. Chief Chell stated that the role of the Public Information Officer is to direct instructions to members of the press and is usually at a fixed post at an incident of occurrence. Chief Chell stated that police officers are not to interfere with members of the press to the best of their abilities; however, members of the press cannot interfere with officers’ safety.

According to Summons § 87(2)(b), issued by PO Ranieri **(BR7)**, § 87(2)(b) was cited § 87(2)(a) 160.50

According to video obtained on X.com, formerly Twitter.com, captured by user § 87(2)(b) **(BR3)**, at video timestamp 00:09, § 87(2)(b) stands on the edge of the crosswalk and runs around officers and towards the street with active traffic. Assistant Chief McCarthy of Manhattan, says out loud, “Get on the sidewalk.” At video timestamp 00:15, Chief Chell grabs § 87(2)(b) by the left arm, and walks her to PO Savic and PO Ranieri and PO Yudt. Chief Chell tells the officers, “Lock

her up. Lock her up. Lock her up.... No more!” At video timestamp 00:26, PO Savic holds § 87(2)(b) by the left arm and PO Ranieri holds her by the right arm and escorts her away from the location.

According to New York Penal Law 240.20(6) (BR8), a person is guilty of disorderly conduct when they congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse.

§ 87(2)(b), § 87(2)(g) By § 87(2)(b) s own admission, she has been instructed by officers to move away multiple times prior to her apprehension and was on the street attempting to document arrests being made. § 87(2)(g)

From the video obtained, § 87(2)(b) is seen running around officers on the crosswalk, and towards the street with active traffic. § 87(2)(b), § 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- Chief Chell has been a member of service for thirty years and has been a subject in eight CCRB complaints and fourteen allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

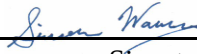
- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York (**BR6**) claiming inter alia: defamation per se; defamation; false imprisonment; false arrest; assault; battery; trespass on the person; trespass to chattels; conversion; abuse of process; malicious prosecution; violation of first amendment rights; violation of fourth amendment rights; malicious and retaliatory arrest; failure to intervene; intentional infliction of emotional distress; negligent infliction of emotional distress; negligence; negligent hiring, screening, retention, supervision, and/or training; violation(s) of claimant’s rights pursuant to the constitution of the state of New York. and seeking an unspecified amount as redress. There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 15

Investigator:	<u>Jeffrey Tsui</u>	<u>INV Jeffrey Tsui</u>	<u>03/27/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u></u>	<u>IM Simon Wang</u>	<u>04/16/24</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date